

Smt. Sharda Tripathi v. U.P. Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 20 December 2016 · Writ-C No. 60017 of 2016 · **Writ disposed; bill-correction application treated as under cl. 6.5 and directed to be decided within four weeks.**

HEADNOTE

A pending request for correction of an electricity bill is to be treated as an application under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with a direction to the competent authority to decide that application by a speaking and reasoned order within four weeks.

FACTUAL SUMMARY

Smt. Sharda Tripathi, a consumer of U.P. Power Corporation Limited, filed a civil writ in the Allahabad High Court after she had, on 26 November 2016, applied to the licensee for correction of her electricity bill. That application had not been decided. She sought a direction that the billing-correction request be taken up. The Court did not examine the billed amount or any alleged excess.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing complaints

HOLDING

An application moved by a consumer for correction of her electricity bill is to be treated as an application under clause 6.5 of the Electricity Supply Code, 2005, and the competent authority must decide it by a speaking and reasoned order. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A pending request for correction of an electricity bill is to be treated as an application under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with a direction to the competent authority to decide that application by a speaking and reasoned order within four weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ELECTRICITY BILL REQUIRED CORRECTION ON THE MERITS

¶ 1